

Kishan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 December 2019 · WRIT - C No. 41075 of 2019 · WRIT - C No. 41075 of 2019 · **Writ disposed; EE to hear objections; limited stay; s.127 liberty.**

HEADNOTE

A writ seeking to quash an electricity recovery notice of Rs. 3,70,412 was disposed of without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking and reasoned final order was required within four weeks; coercive recovery was stayed for seven weeks or until that disposal; and any further grievance against the final order was left to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Kishan Singh approached the Allahabad High Court seeking certiorari to quash a recovery notice dated 5 August 2019 issued by the Executive Engineer (respondent no. 2) demanding Rs. 3,70,412. He alleged that the electricity department was taking coercive action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard. The Court did not decide the demand on the papers.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking final order then Section 127 appeal

HOLDING

Where a consumer challenges a recovery notice as coercive and issued without hearing or compliance with the U.P. Electricity Supply Code, 2005, the High Court may, without quashing the demand, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order, stay coercive action for a limited period, and leave any further grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery notice, the Court left any further challenge to an appeal under Section 127. ¶ 1

alternative-remedy-section-127-appeal The writ was disposed without a merits grant or refusal; the statutory appeal under Section 127 was preserved against the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 5.8.2019 FOR RS. 3,70,412, INCLUDING ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005 AND WANT OF HEARING

Writ disposed by directing objections before the Executive Engineer and a speaking final order; demand not examined. ¶ 1